

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on January 29, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On January 29, 2024, a written complaint was received by this Agency from Mr. A.A.A. (hereinafter, the complainant) against IZQUIERDA UNIDA (hereinafter, the respondent) for not having adequately addressed his right to erasure, and because a mass email (distribution list) was sent containing the public data of all the senders. The complaint is based on the following statements:

- He claims that on October 18, 2023, he sent an email to the respondent requesting "(...) to unsubscribe as a member of Izquierda Unida, and for the total cancellation of my personal data," receiving a response the same day indicating that "(...) We have forwarded your unsubscribe request to Izquierda Unida Castilla y León for processing. From IU Valladolid, we inform you that we will delete your email address from all our distribution lists."

He states that on January 29, 2024, he received an email from the respondent, which included all the email addresses from the distribution list, informing him of some events to be held, in case it was of interest to him.

Along with his written complaint, the complainant provides the following documentation:

- A signed document requesting the respondent to erase all his personal data within one month from the receipt of the request, as well as to notify him in writing of the result of the erasure carried out.
- A screenshot of the exchanged emails with the respondent confirming the receipt of the erasure request and communicating its forwarding to Izquierda Unida Castilla y León for processing.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

There is no record of any response from the respondent in this Agency.

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THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on April 29, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection decided to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, to present any allegations deemed appropriate within ten working days.

On July 15, 2024, a written statement of allegations was received by this authority, highlighting the following:

"Mr. A.A.A. communicated to the email account ***EMAIL.1 on October 18, 2023, at 18:06 the request to unsubscribe from the party and the total cancellation of his personal data.

Eleven minutes later, from the Izquierda Unida account that received the email, the complaint was sent to the account ***EMAIL.2, and three minutes later, the following response was given: 'We have forwarded your unsubscribe request to Izquierda Unida Castilla y León for processing. From IU Valladolid, we inform you that we will delete your email address from all our distribution lists.'

The communication to the membership area never arrived for reasons unknown to us, and the right to erasure requested by the complainant could not be exercised. We understand that the email was lost or deleted by mistake."

"On the membership page ***URL.1, it is clearly indicated several times the email to which one must

address to exercise their rights.

Excerpt from the page:

'These rights are described as we mentioned earlier in Articles 15 to 22 of European Regulation 2016/679. To facilitate the exercise of your rights, you can contact our data protection officer at the email address, identifying yourself with a photocopy of your ID or equivalent document.'

Mr. A.A.A. sent his request to ***EMAIL.2 where they responded immediately, but they are not the persons responsible for managing this type of requests, and for reasons unknown to us, the request never reached the area that manages membership (UAR) Membership and Collection Unit."

The respondent adds that "(...) Immediately after becoming aware of the complaint, on March 28, 2024, a communication was made from the email account of the Data Protection Officer to all recipients of that email, providing the appropriate explanations for the sending to all recipients and informing of the actions that will be taken to rectify the error. An attached document is included: annex1.pdf.

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It is verified that all data of the claimant have been deleted except for those necessary to comply with current legislation, as is done in all cases of this type of rights request."

It is also stated that the error was due to the concurrence of two circumstances:

1.

"The use of email instead of the affiliation communication system due to times of high workload and pressure from the electoral processes. Izquierda Unida has had affiliation software since 2009 that meets all security requirements for sending communications to affiliated individuals and is used daily, filtering with its own Robinson list to avoid errors of this type."

2.

"An error in the communication process to the affiliation area to execute the request for the deletion of the data of Mr. A.A.A."

FOURTH: After examining the document submitted by the responding party, it is forwarded to the claimant, so that, within ten working days, they may present any allegations they deem appropriate, failing to present allegations within the established timeframe.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the case that they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the

function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the claim for the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, it was forwarded to the responding party for analysis, to respond to this Agency within one month and to demonstrate that they had provided the claimant with the appropriate response.

The result of this forwarding did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on April 29, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the claim presented was admitted for processing. This admission for processing determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the claimant was notified of the admission agreement. After that period, the interested party may consider their claim accepted.”

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers to correct any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, deletion, opposition, the right to restrict processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of their rights by the data subject.

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rights, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof of compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and plain language.

IV

Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase personal data without undue delay when one of the following circumstances applies:

a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;

- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and where there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the controller has made the personal data public and is obliged, under paragraph 1, to erase such data, the controller, taking into account the available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to those personal data, or of any copies or replications of the same.

3. Paragraphs 1 and 2 shall not apply when the processing is necessary:

- a) for exercising the right of freedom of expression and information;
- b) for compliance with a legal obligation which requires processing by Union or Member State law to which the controller is subject;

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responsible for the processing, or for the fulfillment of a mission carried out in the public interest or in the exercise of public powers conferred on the responsible party;

- c) for reasons of public interest in the field of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;
- d) for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes, in accordance with Article 89, paragraph 1, insofar as the right indicated in paragraph 1 could make it impossible or seriously hinder the achievement of the objectives of such processing, or
- e) for the formulation, exercise, or defense of claims."

V

Conclusion

The rights procedure is initiated as a consequence of the lack of attention to any of the rights regulated in the data protection legislation. Therefore, in this case, only the facts related to the exercise of these rights will be analyzed and assessed, excluding the other issues raised by the parties.

In this case, and taking into account the provisions of the first paragraph of this legal basis, it has been established that the claimant sent an email to the respondent requesting the deletion of their personal data.

During this procedure, the respondent states that they received the request from the claimant "(...) but they are not the persons responsible for managing this type of requests and for reasons unknown to us, the request never reached the area that manages the affiliation (UAR) Affiliation and Collection Unit."

Although it is appropriate for the request to be directed to the address declared by the responsible party for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 or to the central office, it is considered that the receipt of the request by any department or branch of the responsible party is a valid destination for the same, in accordance with Article 12 of LODPGDD, which states: "The responsible party shall be obliged to inform the affected party about the means available to exercise the rights that correspond to them. The means must be easily accessible to the affected party. The exercise of the right may not be denied solely on the grounds that the affected party has opted for another means."

The Guidelines 1/2022, in their version of March 28, 2023, from the European Data Protection Board, state that

“54. It should be noted that the responsible party is not obliged to respond to a request sent to a random or incorrect email address (or postal address) not directly provided by the responsible party, nor to any communication channel that is clearly not intended to receive requests related to the rights of the data subject, if the responsible party has provided an appropriate communication channel that can be used by the data subject.”

In the case examined, while it is true that the email address to which the claimant directed their request is not listed as a designated email on their website for

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to exercise the rights regulated in the data protection regulations, it is true that they responded indicating that they were forwarding the request to the persons responsible for addressing it. Therefore, it must be considered that the claimant validly exercised that right of access to their personal data.

During the processing of the present procedure, the respondent states that “(...) Immediately after becoming aware of the complaint, on 28-03-2024, a communication was made from the email account of the Data Protection Officer to all recipients of that email, providing the appropriate explanations for the sending to all recipients and informing about the work that will be carried out to rectify the error. Document annex1.pdf is attached.

It is verified that all data of the claimant have been deleted except for those necessary to comply with current legislation, as is done in all cases of this type of rights request.”

Upon examining the aforementioned email, it is observed that, while it offers explanations about the sending with all recipients in view, it does not indicate anything regarding the requested right of erasure.

Regarding the allegation concerning the use of email instead of the affiliation communication system due to times of "heavy workload and pressure from electoral processes," this does not exempt the entity from its responsibility in complying with data protection regulations. Compliance with Article 12 of the GDPR requires that requests for the exercise of rights be addressed diligently, regardless of the workload that the entity may have.

Furthermore, if the respondent, as claimed, has had affiliation software since 2009 that meets security requirements and prevents errors such as the non-deletion of affiliate data through its own Robinson list, then their explanation regarding the "error" in using email is inconsistent. If the software is in daily use, it is difficult to understand why it was not used in this specific case to process the request for data erasure. The “errors” that may occur regarding the processing of personal data (in this case, related to the exercise of rights) are risks present in the processing for which the data controller must identify, assess, and evaluate to ensure that such risks arising from the processing of personal data do not materialize in the rights and freedoms of the data subjects.

Finally, it should be noted that an “internal error” does not exempt the obligation to comply with the right to data erasure. Entities must have effective procedures for processing requests from data subjects, and any “error in the internal communication process” cannot be considered valid for not executing the request within the established deadlines.

On the other hand, it cannot be accepted that the response that should be given can be expressed merely as an administrative procedure, such as the submission of allegations in the present procedure, initiated precisely for not properly addressing the request in question.

The aforementioned regulations do not allow for the request to be overlooked as if it had not been made, leaving it without the response that the responsible parties must issue, even in the event that there are no data in the files or even in those cases where the requirements are not met, in which case the recipient of the request is also obliged to require the rectification of the observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why the right in question cannot

be considered.

Therefore, the request made obliges the controller to provide an express response in all cases, using any means that justifies the receipt of the response.

Given that a copy of the necessary communication that must be directed to the claimant informing them about the decision made regarding the request for the exercise of rights is not attached, it is appropriate to uphold the complaint that originated this procedure.

In view of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by Mr. A.A.A. considering that the provisions of Article 17 of the GDPR have been infringed and to urge IZQUIERDA UNIDA with NIF G78269206, to send the claimant a certification within ten working days following the notification of this resolution, addressing the requested right or denying it with justification indicating the reasons why the request cannot be attended to, in accordance with the provisions of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could constitute an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Mr. A.A.A. and to IZQUIERDA UNIDA.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions established in Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution, or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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